25STCV11194 25STCV11194

County: los-angeles

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MOTION TO WITHDRAW
FROM ARBITRATION AND PROCEED IN COURT

The Court tenders the following tentative decision in the matter Alvaro Martinez-Fonts v. Extra Space Storage, Inc., et al., Los Angeles County Superior Court case number 25STCV11194, set for hearing on June 25, 2026. Alvaro Martinez-Fonts (Plaintiff) moves for an order withdrawing the present case from arbitration pursuant to Code of Civil Procedure section 1281.97. Plaintiff also requests $3,065 in sanctions. Extra Space Storage, Inc., et al. (collectively, Defendants) have not filed an opposition brief. The motion is granted. Plaintiff is awarded $500 in sanctions.

A.
Legal Standard

"In an employment or consumer arbitration that requires . . . the drafting party to pay certain fees and costs before the arbitration can proceed, if the fees or costs required to initiate an arbitration proceeding are not paid within 30 days after the due date the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel arbitration under Section 1281.2." (Code Civ. Proc., § 1281.97, subd. (a)(1).) If the drafting party is in breach as described in subdivision (a), the employee may "[w]ithdraw the claim from arbitration and proceed in a court of appropriate jurisdiction." (Code Civ. Proc., § 1281.97, subd. (b)(1).)

B. Discussion

Plaintiff commenced the present suit against Defendants on April 16, 2025. The Court granted Defendants' motion to compel arbitration of this matter on March 5, 2026. (Nazarian Decl. ¶ 2.) In its order, the Court noted that the contract between the parties did not require Plaintiff to pay arbitration fees above an initial $2,500. (Minute Order, March 5, 2026.) Thereafter, the parties discussed potential arbitrators and selected Jay Horton. (Id. ¶¶ 3–11.) Defendants failed to timely pay the arbitration fees and costs required for the arbitration to proceed. (Id. ¶ 17.) Defendants do not offer any argument in opposition. Thus, the Court finds that Defendants have breached the arbitration agreement as defined under Code of Civil Procedure section 1281.97, subdivision (a) by failing to pay the fees required to initiate the arbitration proceeding. Accordingly, Plaintiff is entitled to withdraw from arbitration pursuant to subdivision (b)(1) and his motion is granted.

Plaintiff requests monetary sanctions with respect to the present motion. "The court shall impose a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant to subdivision (a) of Section 1281.97 or subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney's fees and costs, incurred by the employee or consumer as a result of the material breach." (Code Civ. Proc., § 1281.99, subd. (a).) Here, monetary sanctions are proper because of Defendants' breach of section 1281.97. Plaintiff requests $3,065 in sanctions but offers no evidence in support of these allegedly incurred fees. The Court finds that $500 in sanctions are appropriate based on a reasonable fee of $250 per hour and estimate of 2 hours required to draft the present motion and declaration ([$250 per hour] x [2 hours] = $500).

Conclusion:

The motion is granted. Plaintiff is awarded $500 in sanctions.